

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 10, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Rocky Case and Bryan Cook. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Luna and Mr. Roybal, agenda item #16 (c) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 27, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W Laramie County, Wyoming (located between Old Happy Jack Road and Happy Jack Road, west of I-25). Seth Lloyd, Planning and Development Department, advised the City has initiated the annexation, provided information relating to the property and reviewed requirements of and compliance with annexation conditions contained in state statutes. Mr. Lloyd reported the affiliated annexation ordinance would be introduced at a later date. There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

Mayor Orr opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for C & Z LLC, d/b/a China Buffet, 1958 Dell Range Blvd., Suite D, Cheyenne, Wyoming. Upon inquiry, Kevin Christianson, representing C & Z LLC, explained the request is for a new license due to new ownership. Mr. Christianson advised the current license will expire on March 31, 2020 and the new one will take effect the following day, April 1, 2020 due to the timing of annual license renewals and the new ownership. Kris Jones, City Clerk, confirmed upon inquiry, employees are required to receive TIPS training in order to serve alcohol. There being no comments or input and purpose of the hearing having been met, Mayor Orr referred the item to the Finance Committee and closed the hearing.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map of the Unified Development Code, changing the zoning classification from LR Low Density Residential to NR-2 Neighborhood Residential - Medium Density for the west half of Lot 2 and all of Lot 3, Sunnyside Addition, 8th Filing, Cheyenne, Wyoming (located at the southeast corner of Dell Range Blvd. and Van Buren Ave.). Sharman Straub, area land owner, reported she did not receive notification of the proposed zone change, noted objection and stated the following concerns: multi-family development relating to small lot size, lack of current adequate drainage, roadways icing over during winter months, questioned whether setbacks would be vacated, parking issues and limitations and space restrictions involving landscaping requirements. Ms. Straub voiced concerns relating to traffic access and egress relating to proposed roadway improvements on Van Buren Ave. Daniel Holbrook, property owner and applicant, reported he has met with some adjacent property owners related to concerns and advised he will meet all city code requirements related to parking, drainage and setbacks. He further noted he met with the traffic engineer on how the Dell Range expansion will impact this project and reported it is being taken into consideration. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Shanor. Upon inquiry related to adjacent property owner notification, Mr. Holbrook advised this is the first he had heard that a neighbor in the area hadn't received notification. He explained he hired an engineering firm to send out required notifications and the firm provided information showing notice was sent to required area property owners. He added he is willing to work with neighbors regarding their concerns. Mr. Laybourn moved to postpone to February 24, 2020. Charles Bloom, Planning & Development Director, reported as part of the proposed rezoning process, the applicant must send notice to properties within 300 ft. Mr. Bloom advised the City requires confirmation that all neighbors within 300 ft. receive notice and they believe everyone that was required to receive notice was properly noticed. Mr. Bloom explained the property in question is within 300 ft. Ms. Straub upon inquiry advised they don't reside at the property and that the current tenant is her daughter who reported she did not receive the notice. Motion to postpone died due to lack of second. Motion failed. Voting "yes" – all members of the governing body present with exception of Mr. Laybourn, Dr. Rinne and Mr. White voting "no". (Clerk note-ordinances on third and final reading require a minimum of six (6) affirmative votes)

ORDINANCE – 2nd READING – Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, and Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the City of Cheyenne Municipal Code (Postponed from 01-27-2020). Mr. Roybal advised the item died at Public Services Committee due to lack of a motion. Upon inquiry, Mr. Roybal explained the committee discussed division of the proposed amendments into multiple documents. Item died due to the lack of motion.

ORDINANCE – 1st READING – Amending Chapter 5.52, Massage Establishments, within Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, and Chapters 10.52, Stopping, Standing and Parking Generally, and 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Dr. Rinne and Mr. Shanor)

ORDINANCE – 1st READING – Amending Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Dr. Rinne and Mr. Shanor)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to accept for ownership, development and maintenance, land from the Sweetgrass Land Co., LLC for the purpose of greenway and open space use pursuant to the recorded Sweetgrass 1st Filing and Sweetgrass 2nd Filing subdivisions. Motion (per Consent Agenda) carried. (#6037)

[CA] RESOLUTION – Amending Resolution No. 5979 directing the availability of the production of Tchaikovsky's The Nutcracker Ballet at the Cheyenne Civic Center. Motion (per Consent Agenda) carried. (#6038)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Alliance Addition, 4th Filing, a replat of a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Laramie County, Wyoming (located at the northwest corner of the intersection of Ridge Road and Jackson Street) – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Buffalo Ridge Estates, 11th Filing, a replat of Lot 15, Block 21, Buffalo Ridge Estates, Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Hilltop Avenue and Bluff Place) – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] Memorandum of Understanding between the City of Cheyenne, Laramie County, Wyoming and the City of Cheyenne Board of Public Utilities for the GIS Cooperative Budget Consolidation. (City General Fund and County funds). Motion (per Consent Agenda) carried. (#7142/7143)

[CA] Memorandum of Understanding between the City of Cheyenne and the Laramie County Conservation District for allocation of funds for planning, design and implementation of Crow Creek and its tributaries rehabilitation project. (1991-1994 1% Sales Tax per Resolution #4093 – funds moved in 2013 to the Specific Purpose Sales Tax Fund and proceeds from purchase and sale agreement of Lot 1, Block 1, Pat Griffin Second Filing – funds located in the Specific Purpose Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$147,340.00). (#7144)

Purchase and Sale Agreement between the City of Cheyenne and the Laramie County School District Number One, for real property described as Lots 1 through 12, Block 2, Roberts Place Addition, City of Cheyenne, Laramie County, Wyoming, and more commonly known as 610 West 7th Street, Cheyenne, Wyoming, in the amount of \$569,780.00, to be used as a future elementary school (Revenue to the City). Mr. Luna moved to approve in an amount not to exceed \$569,780.00, seconded by Mr. White. Teresa Moore, Community Recreation & Events Director, upon inquiry advised options are being explored relating to possible future relocation of the gymnastics program and noted they have had discussions with Laramie School District #1 regarding leasing the current location until it is needed for development of a new elementary school. Robin Lockman, City Treasurer, upon inquiry explained the amount of unassigned and unrestricted reserves is difficult to project and advised the amount changes month to month throughout the year. Ms. Lockman provided additional accounting information involving revenue projections. Motion carried. Voting “yes” – all members of the governing body present. (#7145)

[CA] Development agreement between the City of Cheyenne and Brandon Swain regarding fire access (Northwest of Marshall Road and Storey Boulevard). Motion (per Consent Agenda) carried. (#7146)

[CA] Letter of Agreement between the City of Cheyenne, Police Department, and the United States Department of Justice, Drug Enforcement Administration, for locating and eradicating illicit cannabis. Motion (per Consent Agenda) carried (in an amount not to exceed \$75,000.00 – revenue to City). (#7147)

[CA] Development Agreement between the City of Cheyenne and Blue Federal Credit Union, Inc., for the redevelopment and access at the Pershing Boulevard/Converse Avenue/19th Street Roundabout – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Audiomatrix Inc., for the City of Cheyenne Public, Educational, and Governmental (PEG) Access Channel Programming Equipment and Production Equipment Upgrade Project (2015-2018 1% Sales Tax, Charter Equipment Funding Grant) – referred to Finance Committee.

[CA] Consideration of Bid #E-7-20 for furnishing As Needed Emergency Snow Control for the City of Cheyenne, Public Works Department (2015-2018 & 2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from JTL Group, Inc. d/b/a Knife River, Cheyenne, in an amount not to exceed \$200,000.00).

[CA] Consideration of Bid #E-10-20 for furnishing new computers and operating systems for the City of Cheyenne Information Technology Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from DHE Computer Systems, Centennial, CO, in an amount not to exceed \$49,691.00).

[CA] Consideration of Bid #E-11-20 for furnishing one (1) new 2019-2020 ¾ ton regular cab, full size pickup truck and one (1) new 2019-2020 ¾ ton ext. cab, full size pickup truck for the City of Cheyenne, Parks Division (2019-2022 1% Sales Tax) -- referred to Finance Committee.

Voucher Report. No comments were made.

Announcement was made that due to the President's Day Holiday on Monday, February 17, 2020, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 18, 2020 at 11:00 a.m. and Public Services Committee will meet Wednesday, February, 19, 2020 at Noon.

Announcement was made of a Public Hearing to be held February 24, 2020 at 6:00pm in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a microbrewery liquor license application filed with the City Clerk's Office for Black Tooth Brewing Company, LLC d/b/a/ Black Tooth Brewing, 520 W. 19th St., Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held February 24, 2020 at 6:00pm in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, winery and special malt beverage permits) filed with the City Clerk's Office.

Under other business:

Upon inquiry, City Clerk Kris Jones clarified that ordinances on third and final reading require six (6) affirmative votes.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:30 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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